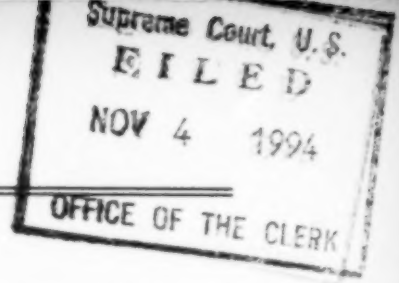


(3)
No. 94-226



In The
Supreme Court of the United States

October Term, 1994

THE FLORIDA BAR,

Petitioner,

vs.

G. STEWART MCHENRY; WENT FOR IT, INC.;
and JOHN T. BLAKELY,

Respondents.

On Writ Of Certiorari
To The United States Court Of Appeals
For The Eleventh Circuit

PETITIONER'S BRIEF ON THE MERITS

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QUESTIONS PRESENTED FOR REVIEW**I**

WHETHER THE COURT SHOULD RETURN TO THE STATES A REASONABLE RANGE OF AUTHORITY TO DETERMINE WHETHER ATTORNEY ADVERTISING ADVERSELY AFFECTS THE ADMINISTRATION OF JUSTICE, AND TO REGULATE IT ACCORDINGLY.

II

WHETHER THE LIMITS PLACED UPON STATE AUTHORITY BY THE DECISION BELOW EXTEND BEYOND ANY HERETOFORE RECOGNIZED BY THIS COURT AND ESTABLISH ATTORNEY ADVERTISING AS A PRIVILEGED CLASS OF COMMERCIAL SOLICITATION WITH A GREATER DEGREE OF INSULATION FROM REGULATION THAN OTHER CLASSES.

A. Whether the challenged rules meet the requirements for valid commercial regulations because they are narrowly tailored to serve substantial governmental interests.

B. Whether the challenged rules are valid time, place or manner regulations.

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LOWER COURT REPORTS AND OPINIONS

Report and Recommendation of U.S. Magistrate Judge, Case No. 92-370-CIV-T-17A (M.D. Fla., August 5, 1992) [App. 1].¹

Order on Recommendation, Case No. 92-370-CIV-T-17A (M.D. Fla., August 5, 1992) [App. 18].

McHenry v. The Florida Bar, 21 F.3d 2258 (11th Cir. 1994) [App. 30].

JURISDICTIONAL GROUNDS

This case is before the Court on writ of certiorari to review a decision of the United States Court of Appeals for the Eleventh Circuit entered on May 10, 1994. This Court has jurisdiction pursuant to 28 U.S.C., § 1254(1).

CONSTITUTIONAL PROVISIONS AND RULES INVOLVED

Amendment I, United States Constitution:

Congress shall make no law respecting an establishment of religion, or prohibiting the free exercise thereof; or abridging the freedom of speech, or of the press; or the right of the people peaceably to assemble, and to petition the Government for a redress of grievances.

¹ The parties have agreed that there are no relevant documents other than those included in the Appendix to the Petition for Certiorari. Consequently, no Joint Appendix is being filed and all references are to the original Appendix.

Amendment XIV, Section 1, United States Constitution:

All persons born or naturalized in the United States, and subject to the jurisdiction thereof, are citizens of the United States and of the State wherein they reside. No State shall make or enforce any law which shall abridge the privileges or immunities of citizens of the United States; nor shall any State deprive any person of life, liberty, or property, without due process of law, nor deny to any person within its jurisdiction the equal protection of the laws.

RULE 4-7.4 (b), Rules Regulating The Florida Bar:

(b) Written Communication.

(1) A lawyer shall not send, or knowingly permit to be sent, on the lawyer's behalf or on behalf of the lawyer's firm or partner, an associate, or any other lawyer affiliated with the lawyer or the lawyer's firm, a written communication to a prospective client for the purpose of obtaining professional employment if:

(A) the written communication concerns an action for personal injury or wrongful death or otherwise relates to an accident or disaster involving the person to whom the communication is addressed or a relative of that person, unless the accident or disaster occurred more than 30 days prior to the mailing of the communication.

RULE 4-7.8(a), Rules Regulating the Florida Bar:

(a) When Lawyers May Accept Referrals. A lawyer shall not accept referrals from a lawyer referral service unless the service:

(1) engages in no communication with the public and in no direct contact with prospective clients in a manner that would violate the Rules of Professional Conduct if the communication or contact were made by the lawyer;

STATEMENT OF THE CASE

In 1987, ten years after this Court first held that attorneys had a constitutional right to advertise, The Florida Bar began a two-year study of lawyer advertising and solicitation. Among other things, the study included hearings throughout the state, a review of public commentary regarding attorney advertising, and a survey by a public opinion polling organization retained by the Bar to compile statistics on public attitudes toward attorney advertising and solicitation. The complete record of information compiled in the study was submitted to the Florida Supreme Court, along with a summary of the information, as part of a petition to amend the Rules Regulating The Florida Bar with respect to advertising and solicitation.²

The survey found that Florida adults have negative feelings about advertising by attorneys, that the public feels that attorneys who participate in direct-mail advertising sacrifice professionalism to promote their own pecuniary self-interest, and that direct-mail advertising

² *The Florida Bar: Petition to Amend the Rules Regulating the Florida Bar – Advertising Issues*, 571 So.2d 451 (Fla. 1990). A copy of the summary which was before the Supreme Court at the time it adopted the new rules was introduced in the trial Court.

promotes frivolous and unwarranted lawsuits, resulting in higher legal costs and belittling the legal profession. [App. 6] The study found that a broad spectrum of the Florida news media, historically the most vigorous advocates of unfettered speech, had strongly condemned attorney advertising in general, and solicitation of recent accident victims or the families of victims in particular.

In February, 1991, the Florida Supreme Court adopted amendments to the advertising rules. Among the rules adopted were Rule 4-7.4(b) and Rule 4-7.8(a), Rules Regulating the Florida Bar. *The Florida Bar: Petition to Amend the Rules Regulating The Florida Bar – Advertising Issues, supra*. Rule 4-7.4 prohibited lawyers from sending a written solicitation relating to an accident or disaster to the victim of such accident or disaster, or a relative of such victim, within 30 days after such accident or disaster. Rule 4-7.8 prohibits a lawyer from accepting a referral from a referral service which fails to comply with the rules regulating attorney communications.

In March, 1992, G. Stewart McHenry and his wholly owned corporation, Went For It, Inc., filed this action in the Middle District of Florida, challenging Rules 4-7.4 and 4-7.8 as being in derogation of the plaintiffs' free speech rights under the First Amendment to the United States Constitution. Jurisdiction of the District Court was invoked to review a question arising under the United States Constitution pursuant to 28 U.S.C., § 1331.

The Complaint alleged that McHenry had sent direct mail advertising letters concerning an action for personal injury to targeted accident victims within 30 days of the accident and wished to continue such practice in the

future. Went For It, Inc. alleged that it wished to conduct business in Florida as a lawyer referral business, and that it desired to contact accident victims and their families by mail within 30 days of an accident and to refer interested persons to personal injury attorneys in Florida.

On October 24, 1992 McHenry was disbarred by the Florida Supreme Court for conduct unrelated to the issues raised in this action.³ McHenry's case was thereby rendered moot and the action continued on the claim of Went For It, Inc. Both parties filed motions for summary judgment which were submitted to Magistrate Judge Charles Wilson for consideration. Judge Wilson received briefs and heard oral argument, and issued his Report and Recommendation. He found that Rule 4-7.4 served a substantial governmental interest and was narrowly tailored to achieve its desired objective. Judge Wilson additionally found that the provision was a reasonable time, place or manner restriction and concluded that it did not violate the United States Constitution. He recommended that summary judgment be entered for the Bar.

The District Judge rejected the recommendation of Judge Wilson and held, as a matter of law, that the challenged rule violates the First, Fifth and Fourteenth Amendments to the United States Constitution. The Court granted summary judgment for the plaintiff.

³ McHenry, who had previously been publicly reprimanded twice, was disbarred for engaging in sexual misconduct in the presence of clients. *The Florida Bar v. McHenry*, 605 So.2d 459 (Fla. 1992).

The decision was appealed to the Eleventh Circuit Court of Appeals. After filing of the Notice of Appeal, the appellees moved, without objection, to add John T. Blakely as a plaintiff based upon identical allegations to those that had been made by McHenry. The case was temporarily remanded to the trial court for consideration of the motion and Blakely was added on December 17, 1993. On May 10, 1994, the Eleventh Circuit, while expressing dissatisfaction at what it perceived to be the necessary result, affirmed.

SUMMARY OF ARGUMENT

I

The Court's decision in *Bates v. State Bar of Arizona*, 433 U.S. 350, 97 S. Ct. 2691, 53 L.Ed.2d 810 (1977), as predicted by its dissenting justices, has led to a significant reduction in the States' ability to regulate attorney commercial solicitation. Decisions following *Bates* have been interpreted by lower Federal courts to effectively limit State regulation to in-person solicitation and deceptive advertising. The result, also predicted, has been a profound change in the professional image of the legal profession. *Bates* and its progeny have deprived States of the ability to judge the impact of such change on the administration of justice and to act accordingly. The Court imposed such limitations upon State authority by comparing the provision of legal services to the sale of commercial products and by rejecting, as a matter of law, all asserted State interests. In so doing, the Court disregarded an analytical framework which it historically had

applied to allow States greater latitude to regulate even political and ideological speech.

The Court has recognized that speech is subject to reasonable limitations when the nature of the speech is detrimental to, or inconsistent with, the mission of the public institution within which the expression is exercised. Such limitations have been upheld in the fields of public employment, education, law enforcement, and the military. In each of these fields, the Court has largely deferred to the States in the determination of whether such speech adversely affects the institutional mission, and the appropriate level of regulation. The State has a substantial interest in maintaining the professionalism of the bar and public confidence in the administration of justice. The Court should return to the States the range of authority necessary to determine whether attorney commercial solicitation adversely affects those interests and, if so, to regulate it accordingly.

Bates recognized that attorney commercial solicitation implicates First Amendment concerns because of the public's interest in receiving useful information regarding the availability of legal services, not because of the individual attorney's interest in pecuniary gain. A lawyer's financial interest has been expressly found by this Court to be only marginally affected with First Amendment concerns. Attorney commercial solicitation is an instrument of the system of justice designed to increase public access to legal services. A lawyer should not be accorded a constitutional right to appropriate that instrument to his or her own pecuniary interest without regard for the impact on the system as a whole.

II

A

While the Court is urged to revisit the underlying premise of *Bates*, it is not necessary to do so in order to uphold the challenged Florida rules. The Eleventh Circuit misconstrued this Court's holdings and accorded lawyer commercial solicitation a greater degree of protection than even political and ideological speech.

This Court has recognized that the State has a substantial enough interest in preserving the quality of life of its citizens to justify significant restrictions upon speech, including political and ideological speech, in the interests of esthetics, public comfort and convenience, and residential privacy. The State has at least as substantial an interest in protecting the personal privacy and tranquility of its citizens from crass commercial intrusion by attorneys upon their personal grief in times of trauma.

B

The Court has long recognized that even political and ideological speech is subject to reasonable time, place or manner restrictions, and the *Bates*-related decisions expressly noted that attorney advertising was not outside the scope of such restrictions. The challenged Florida rules are valid time, place or manner regulations. Contrary to the lower Court's conclusion, the rules are content-neutral as this Court has construed that term. The rules leave ample alternative means of communication and are narrowly tailored to serve the State interest.

ARGUMENT

I

THE COURT SHOULD RETURN TO THE STATES A REASONABLE RANGE OF AUTHORITY TO DETERMINE WHETHER ATTORNEY ADVERTISING ADVERSELY AFFECTS THE ADMINISTRATION OF JUSTICE, AND TO REGULATE IT ACCORDINGLY.

On June 27, 1977 the majority of this Court thrust aside centuries of Anglo-American law defining the role of the lawyer in our system of justice. The Court held in *Bates v. State Bar of Arizona*, *supra*, that States are constitutionally barred from prohibiting attorney advertising, including fee amounts for routine legal services. The majority opinion characterized the decision as a limited one. In his partial dissent, however, Justice Powell, joined by Justice Stewart, predicted that the result would be far from limited:

Although the Court appears to note some reservations (mentioned below), it is clear that within undefined limits today's decision will effect profound changes in the practice of law, viewed for centuries as a learned profession. The supervisory power of the courts over members of the bar, as officers of the courts, and the authority of the respective States to oversee the regulation of the profession have been weakened. Although the Court's opinion professes to be framed narrowly, and its reach is subject to future clarification, the holding is explicit and expansive with respect to advertising of undefined "routine legal services."

Judge Powell's prediction proved prophetic. *Bates* was followed by a series of decisions increasingly narrowing the permissible scope of State regulation of lawyer advertising. In *In re R.M.J.*, 455 U.S. 191, 102 S.Ct. 929, 71 L.Ed.2d 64 (1982), the Court struck down a Missouri rule which prohibited the listing in an attorney's advertising of jurisdictions in which the attorney was admitted and areas of practice not approved by the bar, and the mailing of announcement cards to persons other than lawyers, clients, former clients, personal friends and relatives. The Court expressed concern over the inclusion in the advertisements of a reference in all capital letters to membership in the Bar of the Supreme Court of the United States, which the Court found to be "relatively uninformative" and in "bad taste." Nevertheless, the Court declared the regulation unconstitutional. *Id.* at U.S. 205. The Court's analysis revolved around a single question: Was the advertising deceptive or inherently misleading?

The Court further restricted States' regulatory authority in *Zauderer v. Office of Disciplinary Counsel*, 471 U.S. 626, 105 S.Ct. 2265, 85 L.Ed.2d 652 (1985). The attorney had been disciplined in connection with an advertisement which appeared in 36 Ohio newspapers soliciting legal business from women who had suffered injuries resulting from their use of Dalkon Shield contraceptive devices. The advertisement contained a drawing of a Dalkon Shield and informed the reader that the law firm represented clients in such cases and would handle cases on a contingent basis, and that it should not be assumed that it was too late to file a law suit. The Court struck down Ohio's rules which forbade the solicitation or

acceptance of legal employment resulting from advertisements containing information or advice regarding a specific legal problem, and which prohibited the use of illustrations in attorney advertisements. Again, the Court focused upon the question of whether the particular advertisements were deceptive or whether the mode of advertising was inherently misleading.

In *Shapero v. Kentucky Bar Association*, 486 U.S. 466, 108 S.Ct. 1916, 100 L.Ed.2d 475 (1988) the Court expanded the constitutional prohibition against regulation of problem-specific advertising by holding that "targeted" direct-mail solicitation was constitutionally protected. The petitioner had applied for, and been denied, permission to send a letter to potential clients who had been sued in foreclosure actions. The letter warned recipients that they might be about to lose their home and urged:

Call NOW, don't wait. It may surprise you what I may be able to do for you. Just call and tell me that you got this letter. Remember it is FREE, there is NO charge for calling.

Id. at U.S. 469. As in the cases which preceded *Shapero*, the Court applied the same constitutional standard as would be applied to the advertising of any commercial product. In addition to once again declaring that the State could only prohibit attorney advertisements that were misleading, the Court barred the State from attempting to regulate the format of an attorney advertisement:

The pitch or style of a letter's type and its inclusion of subjective predictions of client satisfaction might catch the recipient's attention more than would a bland statement of purely objective facts in small type. But a truthful and

nondeceptive letter, no matter how big its type and how much it speculates can never "shout at the recipient" or "grasp him by the lapels," as can a lawyer engaging in face-to-face solicitation. The letter simply presents no comparable risk of overreaching. And so long as the First Amendment protects the right to solicit legal business, the State may claim no substantial interest in restricting truthful and nondeceptive lawyer solicitations to those least likely to be read by the recipient.

Id. at 478-479.⁴ Thus, the majority of the Court⁵ had elevated to constitutional level a lawyer's right to engage in used car type commercial appeals, complete with oversized text, loss-leader offers of "FREE" consultations, and promises of customer satisfaction.

In each of the above cases, the Court recognized that the State retained the power to regulate non-deceptive attorney advertising, provided that such regulation directly advanced a substantial governmental interest. However, the Court consistently rejected asserted governmental interests as being insufficient to justify the regulation at issue. The Court found insufficient the State's

⁴ The Court's comment regarding face-to-face solicitation was a reference to *Ohralik v. Ohio State Bar Association*, 436 U.S. 447, 98 S.Ct. 1912, 56 L.Ed.2d 444 (1978), in which the Court held that Ohio could prohibit lawyers from engaging in face-to-face solicitation.

⁵ Justices Rehnquist, O'Connor and Scalia dissented from the entire opinion. Justices White and Stevens dissented from the portion of the opinion denying the State the authority to regulate the pitch and style of the letter and the subjective predictions of client satisfaction.

interest in avoiding the adverse effects of advertising upon professionalism, the administration of justice, and the quality of legal services [*Bates, supra* at U.S. 368-377; *Zauderer, supra* at U.S. 647], the inherently misleading nature of attorney advertising [*Bates, supra* at U.S. 372], the difficulties of enforcing restrictions upon deceptive lawyer advertising [*Bates, supra* at U.S. 379], the desirability of avoiding the encouragement of litigation [*Zauderer, supra* at U.S. 642], and the potential for abuse of vulnerable individuals. [*Shapiro, supra* at U.S. 474-476]. Each of these State interests was rejected as a matter of law. The Court thereby foreclosed the ability of States even to weigh the impact of such interests upon the administration of justice. The effect of the above line of decisions has been to leave lower Federal courts, including the Eleventh Circuit in this case, with the perception that, with the exception of in-person solicitation, States are limited to reviewing attorney advertising, on a case-by-case basis, for evidence of deception.

In its opinion affirming the District Court decision, the Eleventh Circuit expressed dissatisfaction with what it perceived to be the result required by this Court's line of decisions in *Bates* and the cases that followed. The Circuit Court stated:

Justice Powell predicted in *Bates* that recognizing First Amendment protections for attorney advertising would "effect profound changes in the practice of law, viewed for centuries as a learned profession." 433 U.S. at 389, 97 S.Ct. at 2712 (Powell, J., concurring in part and dissenting in part.) That prediction has proven true. Unfortunately, the resulting changes have not necessarily been for the better. We are disturbed

that *Bates* and its progeny require the decision we reach today.

McHenry v. The Florida Bar, 21 F.3d 2258, 2265 (11th Cir. 1994). This Court's opinion in *Bates* rested upon the presumption that attorney advertising would serve "individual and societal interests in assuring informed and reliable decisionmaking," and its finding of "the postulated connection between advertising and the erosion of true professionalism to be severely strained." *Id.* at U.S. 364, 368. The Court questioned the assertion that advertising would diminish attorneys' reputations in the community, noting that, "Bankers and engineers advertise, and yet these professions are not regarded as undignified." *Id.* at U.S. 369. In the seventeen years since the *Bates* decision, the development of attorney advertising, as suggested in the opinion below, has not been as favorable as the *Bates* Court anticipated. One need only open the yellow pages of any major city telephone directory to realize that the great bulk of attorney advertising provides citizens with little or no useful information, and is far less professional than that engaged in by bankers, engineers and most other professionals. Studies such as that performed by The Florida Bar indicate that such advertising has resulted in a negative perception of, and loss of confidence in the legal profession. In his Report and Recommendation, the Magistrate Judge found:

The Bar's two-year study of lawyer advertising and solicitation conducted preliminarily to the implementation of its advertising rule discloses that Florida adults, generally, have negative feelings about direct-mail advertising by attorneys. The public feels that attorneys who participate in direct-mail advertising sacrifice professionalism to promote their own pecuniary

self-interest. Florida adults believe that direct-mail advertising promotes frivolous and unwarranted lawsuits, resulting in higher legal costs and belittling the legal profession.

[Appendix to Petition for Certiorari, p. 6]

In her dissenting opinion in *Shapero*, Justice O'Connor, joined by Justices Rehnquist and Scalia, suggested that the time has come to reexamine the *Bates* premise:

I agree with the Court that the reasoning in *Zauderer* supports the conclusion reached today. That decision, however, was itself the culmination of a line of cases built on defective reasoning. As today's decision illustrates, the Court has been unable or unwilling to restrain the logic of the underlying analysis within reasonable bounds. The resulting interference with important and valid public policies is so destructive that I believe the analytical framework itself should now be reexamined.

Judge O'Connor identified the erroneous reasoning which she had referred to as "a defective analogy between professional services and standardized consumer products." *Id.* at U.S. 480. The Court is respectfully urged to consider that the consumer product analogy has, indeed, proved problematic, and that there is a more appropriate analytical framework within which to judge the attorney advertising issue.

This Court has historically recognized that the exercise of free expression is subject to reasonable limitations when the nature of such exercise is detrimental to, or inconsistent with, the mission of the public institution within which the expression is exercised. Thus, the Court

has upheld such limitations in public employment, *Rankin v. McPherson*, 483 U.S. 378, 384, 107 S.Ct. 2891, 97 L.Ed.2d 315 (1987) ["The determination of whether a public employer has properly discharged an employee for engaging in speech requires 'a balance between the interests of the employee, as a citizen, in commenting upon matters of public concern and the interest of the State, as an employer, in promoting the efficiency of the public services it performs through its employees.'"], penal institutions, *Hudson v. Palmer*, 468 U.S. 517, 523, 104 S.Ct. 3194, 82 L.Ed.2d 393 (1984) [Prisoners "retain those First Amendment rights of speech 'not inconsistent with . . . the legitimate penological objectives of the corrections system.'"], the armed forces, *Goldman v. Weinberger*, 475 U.S. 503, 507, 106 S.Ct. 1310, 89 L.Ed.2d 478 (1986) ["The military need not encourage debate or tolerate protest to the extent that such tolerance is required of the civilian state by the First Amendment; to accomplish its mission the military must foster instinctive obedience, unity, commitment, and esprit de corps."], and educational institutions, *Hazelwood School District v. Kuhlmeier*, 484 U.S. 260, 266, 108 S.Ct. 562, 98 L.Ed.2d 592 (1988) ["A school need not tolerate student speech that is inconsistent with its 'basic educational mission' . . . even though the government could not censor similar speech outside the school."]

The basic theme underlying all of the foregoing decisions is that the State must be given the latitude to regulate types of expression which are exercised within the context of certain fundamental public institutions when such expression plays an integral role in, or could have an adverse effect upon, the mission of such institution. Significantly, all of the above decisions involved the

exercise of political, ideological or religious expression, the most highly revered of all free speech rights.

It cannot be denied that the State has a substantial interest in the administration of justice. This Court has long recognized that such interest extends to the regulation of lawyers. The Court has noted that, "The interest of the States in regulating lawyers is especially great since lawyers are essential to the primary government function of administering justice, and have historically been 'officers of the courts,' " *Goldfarb v. Virginia State Bar*, 421 U.S. 773, 792, 95 S.Ct. 2004, 44 L.Ed.2d 572 (1975), and that the States' interest in disciplining lawyers is "incident to their broader responsibility for keeping the administration of justice and the standards of professional conduct unsullied." *Cohen v. Hurley*, 366 U.S. 117, 123, 81 S.Ct. 954, 6 L.Ed.2d 156 (1961). One year after *Bates*, the Court, in a unanimous decision in *Ohrlik v. Ohio State Bar Association*, *supra* at U.S. 460, acknowledged the States' substantial interest in regulating attorneys in general and attorney solicitation in particular:

The state interests implicated in this case are particularly strong. In addition to its general interest in protecting consumers and regulating commercial transactions, the State bears a special responsibility for maintaining standards among members of the licensed professions.

* * *

While lawyers act in part as "self-employed businessmen," they also act "as trusted agents of their clients, and as assistants to the court in the search of a just solution to disputes."

Two separate aspects of the institutional speech cases have particular application to a State's interest in regulating attorney advertising. In a series of cases involving discipline or discharge of public employees for engaging in certain speech, the Court has established a weighing test:

The determination whether a public employer has properly discharged an employee for engaging in speech requires "a balance between the interests of the employee, as a citizen, in commenting upon matters of public concern and the interest of the State, as an employer, in promoting the efficiency of the public services it performs through its employees."⁶

Rankin v. McPherson, 483 U.S. 378, 384, 107 S.Ct. 2891, 97 L.Ed.2d 315 (1987) citing *Pickering v. Board of Education*, *supra*; and *Connick v. Myers*, 461 U.S. 138, 140, 103 S.Ct. 1684, 75 L.Ed.2d 708 (1983). When the speech involves a matter of public concern, the employee's interest in engaging in the particular speech must be weighed against the interest of the State, as an employer, in fulfilling the mission of the agency. When the speech does not involve a matter of public concern, it is not beyond the reach of the First Amendment, but it is entitled to a substantially lesser degree of protection. In either case, the Court has extended considerable deference to the

⁶ "Matters of public concern" has been defined as matters as to which "free and open debate is vital to informed decision-making by the electorate," *Pickering v. Board of Education*, 319 U.S. 563, 571-572, 88 S.Ct. 1731, 20 L.Ed.2d 811 (1968), and matters as to which debate must "be uninhibited, robust, and wide-open." *Dun & Bradstreet, Inc. v. Greenmoss Builders, Inc.*, 472 U.S. 749, 755, 105 S.Ct. 2939, 86 L.Ed.2d 593 (1985).

State in the determination of whether the speech has an unduly adverse effect upon the ability of the public employer to fulfill its essential mission.

While lawyers are not public employees, the analogy is valid. As "officers of the court" lawyers perform an essential role in the administration of justice. Courts have always recognized that a lawyer's speech within the courtroom is subject to considerable judicial oversight in order to protect the integrity and efficiency of the judicial process. The fact that advertising the availability of legal services takes place outside the courtroom is of little consequence in this context. Such advertising deals solely with an essential aspect of the judicial process and is inextricably tied to the administration of the public function. To the extent that it may adversely affect the mission of the judicial system, the State has no less interest in its regulation than it does in any public employment situation. An attorney's exercise of speech in the form of a commercial solicitation does not involve a matter of public concern. The State's interest in maintaining the professionalism of the members of the bar, on the other hand, is substantial. The public's perception of, and confidence in, its system of justice and those who administer it is critical to the stability of a democratic society.⁷

⁷ In *Ohralik v. Ohio State Bar Ass'n*, *supra* at U.S. 460-461, the Court noted that:

While the Court in *Bates* determined that truthful, restrained advertising of the prices of "routine" legal services would not have an adverse effect on the professionalism of lawyers, this was only because it found "the postulated connection between advertising and the erosion of *true professionalism* to be severely strained. [citation omitted] The *Bates* Court did

The States have been hamstrung by the perception of lower Federal courts that this Court's decisions leave little or no room for States to judge the impact of attorney advertising upon the judicial system and to act accordingly. The State should be accorded the same degree of deference in judging the impact of attorney advertising upon the administration of justice as it is accorded in the public employee sphere.

The second aspect of the institutional speech cases which applies in the attorney advertising setting is reflected in *Hazelwood School District v. Kuhlmeier*, *supra*. The Court had previously held that students in public schools do not "shed their constitutional rights to freedom of speech or expression at the schoolhouse gate." *Tinker v. Des Moines Independent Community School Dist.*, 395 U.S. 503, 511, 89 S.Ct. 733, 21 L.Ed.2d 731 (1969). Nevertheless, the Court in *Hazelwood* upheld the right of the school to excise material from the school newspaper. As in the public employee cases, the Court, citing its decision in *Bethel School District v. Fraser*, 478 U.S. 675, 106 S.Ct. 3159, 92 L.Ed.2d 549 (1986), held that, "A school need not tolerate student speech that is inconsistent with its 'basic educational mission [citation omitted] even though the government could not censor similar speech outside the school." *Id.* at U.S. 266. In addition to resting its decision upon this general principle, the Court went further and discussed the nature of the forum in which the speech was being exercised. The Court distinguished between "a student's personal expression that happens to

not question a State's interest in maintaining high standards among licensed professionals.

occur on the school premises" and speech that occurs in "school-sponsored publications, theatrical productions, and other expressive activities that students, parents, and members of the public might reasonably perceive to bear the imprimatur of the school." *Hazelwood*, *supra* at U.S. 271. The Court found that the State had significant interests that justified its control over the exercise of speech within these forums:

Educators are entitled to exercise greater control over this second form of student expression to assure that participants learn whatever lessons the activity is designed to teach * * * and that the views of the individual speaker are not erroneously attributed to the school. * * * A school must be able to set high standards for the student speech that is disseminated under its auspices * * * and may refuse to disseminate student speech that does not meet those standards.

Id. at 271-272.

Again, there is a material analogy to attorney advertising. The *Bates* Court did not apply First Amendment protection to attorney advertising because of the attorney's interest in pecuniary gain. It did so because of such advertising's potential to inform the public "of the availability, nature, and prices" of legal services. It concluded that "such speech serves individual and societal interests in assuring informed and reliable decisionmaking." *Bates v. State Bar of Arizona*, *supra* at U.S. 364. The lawyer's pecuniary interest in the advertising was of little moment in the constitutional

analysis.⁸ Just as the school newspaper is primarily an instrument of the educational system designed to further its mission of providing education, attorney advertising is primarily an instrument of the judicial system designed to further its mission of making legal services accessible.

The Court in *Hazelwood* also recognized the right of the State to regulate activities that "members of the public might reasonably perceive to bear the imprimatur of the school" in order to assure that "the views of the individual speaker are not erroneously attributed to the school." *Id.* at U.S. 271. Similarly, the public might reasonably perceive attorney advertising to bear the imprimatur of the entire judicial system. It is perhaps in this respect that the analogy of legal services and commercial products is most defective. Unlike a common commercial product, the services which a lawyer sells exist only within the realm of a fundamental public function. Unlike the seller of a commercial product, the lawyer is able to offer his or her services only because he or she has been cloaked with the mantle of the State as a person with the skill and high character traits to be entrusted with the performance of a critical constitutional function. In *Theard v. United States*, 354 U.S. 278, 281, 77 S.Ct. 1274, 1 L.Ed.2d 1342 (1957), this Court discussed the philosophical basis for control by the courts over a lawyer's professional life:

⁸ The *Bates* Court later stated that, "A lawyer's procurement of remunerative employment is a subject only marginally affected with First Amendment concerns." *Ohralik v. Ohio State Bar Association*, *supra* at U.S. 459.

The court's control over a lawyer's professional life derives from his relation to the responsibilities of a court. The matter was compendiously put by Mr. Justice Cardozo while Chief Judge of the New York Court of Appeals. "Membership in the bar is a privilege burdened with conditions." (Matter of Rouss, 221 N.Y. 81, 84, 116 N.E. 782, 783). The appellant was received into that ancient fellowship for something more than private gain. He became an officer of the court, and, like the court itself, an instrument or agency to advance the ends of justice.

Attorney advertising is primarily an instrument to serve the administration of justice and its use has potential impact upon the entire legal profession and judicial system. An attorney, having been granted the privilege of serving that system, should not be heard to claim a constitutional right to appropriate such instrument to his or her own pecuniary interest without regard for its impact upon the system as a whole.

In their partial dissent in *Bates*, Justices Powell and Stewart commented:

[T]he Court's imposition of hard and fast constitutional rules as to price advertising is neither required by precedent nor likely to serve the public interest. One of the great virtues of federalism is the opportunity it affords for experimentation and innovation, with freedom to discard or amend that which proves unsuccessful or detrimental to the public good. The constitutionalizing – indeed the affirmative encouraging – of competitive price advertising of specified legal services will substantially

inhibit the experimentation that has been underway and also will limit the control heretofore exercised over lawyers by the respective States.

Bates at U.S. 403. The Court is respectfully urged to return to the States the latitude to weigh the value to the public of attorney commercial solicitation against the adverse effects of such solicitation and to engage in the "experimentation and innovation" which is the proper realm of the States.

II

THE LIMITS PLACED UPON STATE AUTHORITY BY THE DECISION BELOW EXTEND BEYOND ANY HERETOFORE RECOGNIZED BY THIS COURT AND ESTABLISH ATTORNEY ADVERTISING AS A PRIVILEGED CLASS OF COMMERCIAL SOLICITATION WITH A GREATER DEGREE OF INSULATION FROM REGULATION THAN OTHER CLASSES.

While the Court is urged to revisit the premise of *Bates*, it is not necessary to do so in order to reverse the opinion below. This Court has held that, "The Constitution . . . accords a lesser protection to commercial speech than to other constitutionally guaranteed expression." *Central Hudson Gas v. Public Service Comm'n*, 447 U.S. 557, 563, 100 S.Ct. 2343, 65 L.Ed.2d 341 (1980), and that attorney commercial solicitation is only "marginally affected with First Amendment concerns." *Bates, supra*. Nevertheless, the Eleventh Circuit opinion would accord lawyer commercial solicitation a greater degree of protection in certain respects than even political and ideological speech.

- A. The challenged rules meet the requirements for valid commercial regulations because they are narrowly tailored to serve substantial governmental interests.

Attorney advertising falls within the scope of commercial speech which this Court has given "a limited measure of protection, commensurate with its subordinate position in the scale of First Amendment values" and is subject to "modes of regulation that might be impermissible in the realm of non-commercial expression." *Bates v. State Bar of Arizona*, 433 U.S. 350, 97 S.Ct. 2691, 53 L.Ed.2d 810 (1977); *Ohralik v. Ohio State Bar Association*, 436 U.S. 447, 98 S.Ct. 1912, 1918, 56 L.Ed.2d 444 (1978). Although regulation of commercial speech does not have to meet the least restrictive means test, the Court has held that such regulation must directly advance a substantial governmental interest and be narrowly tailored to fit the governmental objective. *Central Hudson Gas & Electric Corp. v. Public Service Comm'n*, 447 U.S. 557, 566, 100 S.Ct. 2343, 2351, 65 L.Ed.2d (1980); *Board of Trustees v. Fox*, 492 U.S. 469, 109 S.Ct. 3028, 106 L.Ed.2d 388 (1989).

The State has a substantial interest in protecting the personal privacy and tranquility of persons who were themselves, or whose loved ones were, recent victims of personal injury or death. This Court has recognized in a variety of areas that the State has a substantial interest in preserving the quality of life of its citizens. Indeed, that interest has been so substantial as to justify restrictions upon political and ideological speech. The Court has upheld ordinances prohibiting the posting of election

signs on public property, *Members of City Counsel v. Taxpayers for Vincent*, 466 U.S. 806, 104 S.Ct. 2118, 2129, 80 L.Ed.2d 772 (1984), ["It is well settled that the state may legitimately exercise its police powers to advance esthetic values."], prohibiting the use on public streets of sound trucks emitting loud noises, *Kovacs v. Cooper*, 336 U.S. 77, 69 S.Ct. 448, 454 (1949), ["The preferred position of freedom of speech in a society that cherishes liberty for all does not require legislators to be insensible to claims by citizens to comfort and convenience."], and prohibiting ideological picketing directed at the residence of an individual. *Frisby v. Schultz*, 487 U.S. 474, 108 S.Ct. 2495, 101 L.Ed.2d 420 (1988).

In *Frisby*, the Court upheld a law which was passed for the purpose of prohibiting anti-abortion picketing outside the residence of a doctor accused of performing abortions. The Court stated:

The State's interest in protecting the well-being, tranquility, and privacy of the home is certainly of the highest order in a free and civilized society.

* * *

One important aspect of residential privacy is protection of the unwilling listener. Although in many locations, we expect individuals simply to avoid speech they do not want to hear [citations omitted] the home is different. That we are often "captives" outside the sanctuary of the home and subject to objectionable speech . . . does not mean we must be captives everywhere.

Id. at 2502. In a comment significantly descriptive of direct-mail solicitation, the Court noted that, "The type of

picketers banned by the . . . ordinance generally do not seek to disseminate a message to the general public, but to intrude upon the targeted residence, and to do so in an especially offensive way." *Id.* at 2503. The Court's focus on the distinction between picketing directed at the general public and picketing directed at a specific individual is directly analogous to the distinction between mass media advertising and direct-mail solicitation. The Court's concern over "residential privacy" is also applicable to much of the attorney direct-mail solicitation since it is generally directed to persons in their homes.⁹

The communication which is the subject matter of the challenged rules is no less an intrusion on personal privacy and tranquility and no less offensive than the election signs in *Taxpayers for Vincent*, the sound trucks in *Kovacs*, or the picketing in *Frisby*. To the contrary, in an important respect it is more intrusive and offensive because it involves a much more personal matter and it is knowingly and intentionally directed at persons who are most vulnerable. In *Matter of Anis*, 599 A. 2d 1265, 1270 (N.J. 1992), the Supreme Court of New Jersey described such conduct in its analysis of a restriction similar to Florida's:

⁹ A statistical analysis by The Florida Bar of direct-mail advertising submissions from April, 1991 through March, 1992 indicates that a minimum of 87% were sent to residential addresses. The actual figure is probably close to 100% since the source of the names and addresses of most accident victims is the Department of Motor Vehicles [R. 15], and Florida law requires that drivers list their residence addresses with the Department. § 322.08, Fla. Stat.

Nothing in the Constitution . . . requires us to countenance solicitation that intrudes upon victims or their families in the initial throes of their grief. . . . What we are talking about here . . . is conduct that is patently offensive to the common sensibilities of the community because it intrudes upon the private grief of victims or their families, serves only to compound their sorrow and solicits representation of them at a moment of their extreme vulnerability.

* * *

The non-intrusive nature of the communication in *Shapero* is what commended the solicitation to commercial speech protection. [citation omitted]. In contrast, the form of solicitation at issue here is so universally condemned that its intrusiveness can hardly be disputed.

* * *

We have no doubt, then, that the commercial speech guarantees of the First Amendment do not protect attorney conduct that is universally regarded as deplorable and beneath common decency because of its intrusion upon the special vulnerability and private grief of victims or their families.

The lower court decision leaves us with an indefensible legal doctrine which holds that the State has a sufficiently substantial interest in protecting the "comfort and convenience" of its citizens from loud noise or their "esthetic" sensibilities from political signs, but does not have a sufficiently substantial interest to protect them in times of deep personal trauma from crass commercial intrusion upon their private grief and residential tranquility "that

is universally regarded as deplorable and beneath common decency."

B. The challenged rules are valid time, place or manner restrictions.

While commercial speech is given only a "subordinate position in the scale of First Amendment values," political and ideological speech sit at the very top of the scale. Nevertheless, even these most highly protected forms of speech are subject to reasonable time, place and manner restrictions:

Expression, whether oral or written or symbolized by conduct, is subject to reasonable time, place, or manner restrictions. We have often noted that restrictions of this kind are valid provided that they are justified without reference to the content of the regulated speech, that they are narrowly tailored to serve a significant governmental interest, and that they leave open ample alternative channels for communication of the information.

Clark v. Community for Creative Non-violence, 468 U.S. 288, 104 S.Ct. 3065, 3069, 82 L.Ed.2d 221 (1984). The lower Court concluded that the challenged rules are not valid time, place or manner restrictions because the 30-day ban was not content-neutral.¹⁰ The Court's conclusion is not

¹⁰ Petitioner does not concede that the challenged rule requires reference to content in the first place. While the wording of the rule appears to focus on the content of the letter, in practical effect, it has nothing to do with content. Its application is based upon the nature of the intended recipient as an accident

consistent with this Court's interpretation of "content-neutral:"

The principal inquiry in determining content-neutrality, in speech cases generally and in time, place, or manner cases in particular, is whether the government has adopted a regulation of speech because of disagreement with the message it conveys. [citation omitted] The government's purpose is the controlling consideration. A regulation that serves purposes unrelated to the content of expression is deemed neutral, even if it has an incidental effect on some speakers or messages but not others. [citation omitted] Government regulation of expressive activity is content-neutral so long as it is "justified without reference to the content of the regulated speech."

Ward v. Rock Against Racism, 491 U.S. 78, 109 S.Ct. 2746, 2754, 105 L.Ed.2d 661 (1989) [emphasis by Court].

This Court has established that the mere fact that the content of a communication must be referred to in order to determine whether the speech is subject to the regulation does not render it content-based. The question is whether the challenged regulation is "justified without reference to the content of the regulated speech." In *Ward*, the city attempted to regulate the volume of amplified music played in a public park. The case arose out of a concert sponsored by a group dedicated to the promotion

victim or family of a victim. It is not necessary for the Bar to review the content of a letter in order to determine whether or not the rule is applicable. The Bar need only determine the source of the list of recipients of the letter.

of anti-racist views. The Court of Appeals struck the regulation, holding that the city had failed to prove that its regulation was the least restrictive means of regulating the volume. This Court agreed that music is a form of expression and communication which is protected under the First Amendment and that the area in which the music was being played was a public forum, "in which the government's right to regulate expression is subject to the protections of the First Amendment." *Id.* at S.Ct. 2746. Nevertheless, the Court reversed. The State interest recognized in *Ward* as being sufficiently compelling has particular bearing on the case at bar:

The principal justification for the sound-amplification guideline is the city's desire to control noise levels at Bandshell events in order to retain the character of Sheep Meadow and its more sedate activities, and to avoid undue intrusion into residential areas and other areas of the park. This justification for the guideline "has nothing to do with content" [citation omitted] and it satisfies the requirement that time, place, or manner regulations be content neutral.

Id. at S.Ct. 2754.

The regulation in the case at bar meets the Supreme Court's definition of content-neutral because it is "justified without reference to the content of the regulated speech." The regulation is not intended to prohibit the message (solicitation of business), but, like the regulation in *Ward*, to avoid undue intrusion into the personal privacy of individuals during a particularly trying period, and to protect the bar and from the public perception that

it is unprofessional and driven solely by pecuniary interests. The regulation is limited to letters directed at victims of accidents or personal injury because that is the primary group which the State perceives to be in need of protection, not because of the content of the message. If the ban applied to all direct-mail solicitation, the Court below would undoubtedly have concluded that the regulation was overbroad because it would have reached solicitation that the State has no substantial interest in regulating.

The challenged rules also fall within the scope of the doctrine upon which this Court upheld the ordinance in *Renton v. Playtime Theatres, Inc.*, 475 U.S. 41, 106 S.Ct. 925, 89 L.Ed.2d 29 (1986). The ordinance prohibited adult motion picture theaters from locating within 1,000 feet of any residential zone, church, park or school. Like Rule 4-7.4(b), the Renton ordinance required reference to the content of the motion pictures shown to determine whether the regulation was applicable to a particular theater. Nevertheless, the Court upheld the ordinance based upon the fact that it was "aimed not at the content of the films shown at 'adult motion picture theaters,' but rather at the secondary effects of such theaters on the surrounding community." *Id.* at U.S. 46. Similarly, the challenged rule is not aimed at the content of the message, but at the secondary effects upon the legal profession, and ultimately upon our system of justice, occasioned by the public's reaction to the particular type of advertising.

The Court is also urged to consider that the opinion below places undue emphasis on the first element of the time, place and manner test, content review, as though it

stands alone. The content review question is, in most cases, logically intertwined with the other two elements. If the regulation is narrowly drawn and there are truly ample alternative avenues of the same communication left open, it follows that it is highly unlikely that the regulation was directed at the content of the message.

The challenged Florida rules leave ample alternative means of communication. The rules are extremely narrow, applying only during a 30-day period and only to one particular form of communication. Lawyers are free to communicate the same message by direct-mail at any time more than 30 days from the date of the accident or disaster and are free to communicate the same message by any other advertising mode during the 30-day delay. The Comments to Rule 4-7.4, as adopted by the Florida Supreme Court, make specific reference to the alternative means of advertising available to lawyers pursuant to Rule 4-7.4, including "billboards and other signs, radio, television and recorded messages the public may access by dialing a telephone number."

In *Bates*, this Court expressly noted, "that there may be reasonable restrictions on the time, place and manner of advertising." *Bates v. State Bar of Arizona*, *supra* at 97 S.Ct. 2709. Surely the Court was not referring only to restrictions on attorney advertising through use of loudspeakers or signs on public property. It is difficult to conceive of a type of attorney solicitation regulation that would qualify under the time, place or manner doctrine if the challenged rules do not.

The challenged rules are both reasonable commercial speech restrictions and time, place and manner regulations, and are entitled to be upheld on either basis.

CONCLUSION

The Court is respectfully urged to reverse the decision below and declare Rules 4-7.4(b) and 4-7.8(a), Rules Regulating the Florida Bar, valid. In addition, the Court is urged to revisit the *Bates* premise and broaden the discretion of the States in the regulation of attorney commercial solicitation.

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